

25VECV03265 25VECV03265

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Case Number: 25VECV03265 Hearing Date: August 4, 2026 Dept: T

25VECV03265 JAMES V BEST

BUY

[TENTATIVE] ORDER:

Defendant iFit, Inc.'s Motion for
Summary Judgment is GRANTED.

Defendant Best Buy, Inc.'s Motion
for Summary Judgment is DENIED.

Defendant iFit, Inc. Alternative
Motion for Summary Adjudication is MOOT.

Defendant Best Buy, Inc.'s Alternative
Motion for Summary Adjudication is DENIED.

Defendant iFit, Inc.'s Evidentiary
Objections are SUSTAINED as to nos. 3 and 5 through 11, and OVERRULED as to
nos. 1, 2, and 4.

Introduction

Defendants

iFit, Inc. (iFit) and Best Buy, Inc. (Best Buty) (collectively, Defendants)
moved for summary judgment (MSJ) against Plaintiff Willie Beck James'
(Plaintiff) Complaint. Alternatively,

Defendants also moved for summary adjudication of issues (MSA). The MSA raised three issues: (1) Plaintiff's

first cause of action (COA) for strict products liability cannot establish a defect or causation; (2) Plaintiff's second COA for negligent products liability cannot establish breach or causation; and (3) Plaintiff's third COA for breach of warranty cannot establish that the treadmill failed to conform to any warranty.

Discussion as to iFit, Inc.

Defendant

asserted that there is no triable issue of fact as to the existence of a defect/failure to perform, causation, and breach of the warranty. The three COAs require evidence of a defect in the product (manufacturing or design defect), negligence in manufacturing/designing the product (negligent product liability), a failure to perform as stated/promised or a failure to meet the quality of the product (breach of express or implied warranty), and causation. (CACI nos. 1201 [strict liability – manufacturing defect], 1203 [strict liability – design defect], 1220 [negligence product liability], 1230 [express warranty], and 1231 [implied warranty of merchantability]). Plaintiff alleged that the treadmill stopped while she was using the treadmill and the stoppage caused her to fall and sustain injuries. (Defendants' Separate Statement of Facts (DSSF) 1, 4-8, and 10.) Defendant provides that Plaintiff does not have evidence of any defect or failure to perform that is attributable to Defendant because Plaintiff does not possess the allegedly defective treadmill for inspection by an expert. (DSSF 5 and 9.) Without possession of the treadmill and/or inspection of the treadmill's internal workings, Defendant met its initial burden of proof to show that no triable issue of fact exists as to the reason the treadmill stopped or that the treadmill had a manufacturing/design defect or involved any negligence attributable to Defendant or involved a failure to perform on the warranties. The burden transferred to Plaintiff to show that a triable issue exists.

Plaintiff

asserted that a triable issue of fact exists as to a defect and causation because a treadmill, when used as intended, is not supposed to stop on its own. (Plaintiff's Disputed Statements of Fact (PDSF) 4-9.) Plaintiff submitted the declaration of Terry James (James) and the expert declaration of Frank Perez (Perez). Further, Plaintiff's discovery responses stated that the treadmill stopped while Plaintiff was using the treadmill. Plaintiff's discovery

responses and the James declaration only establish that the treadmill stopped. James also attested to the fact that when he was using it the treadmill stopped while James used it. Plaintiff asserts the evidence provides a triable issue of fact that some-type of defect existed. However, the issue of fact Defendant placed into issue is whether the stoppage was a manufacturing/design defect, negligence on the part of Defendant, or failure to perform on the warranties. It is undisputed that the treadmill stopped while Plaintiff was using it. However, there are no facts/evidence presented by Plaintiff to show that the stopping of the treadmill is attributable to Defendant (i.e., a manufacturing/design defect, negligence on Defendant's part, or a failure to perform on the warranties).

Further, Expert Perez testified that a treadmill "does not ordinarily and unexpectedly stop during ordinary walking use absent defect or malfunction" and "repeated substantially similar consumer complaints demonstrate a recurring malfunction pattern". (Perez Decl. pars. 2.a. and 2.d.) However, evidence/opinion as to other treadmills is insufficient to show that the treadmill at issue had a defect attributable to Defendant. Without the treadmill at issue and without inspection of the treadmill at issue, facts/evidence are not presented to show that a defect attributable to Defendant existed on the treadmill at issue. Further, Perez testified that "[t]he treadmill presented an unreasonable safety hazard; The [sic] treadmill malfunction was a substantial factor in causing Plaintiff's injuries" and that "[t]he subject treadmill failed consumer expectations." (Perez Decl. par. 2.f. and 2.g.) However, without any facts from Perez to show that Perez inspected the treadmill at issue, the expert opinion testimony specific to the treadmill at issue lacks sufficient basis for the opinion. Because Plaintiff's evidence did not present facts to show that the defect is attributable to Defendant, Plaintiff failed to meet their burden of proof on the MSJ. Because Plaintiff failed to meet their burden on the MSJ, the MSJ as to defendant iFit is persuasive and grounds exist to grant the MSJ.

Specific

to the third COA as to breach of warranty, Defendants further argued that there is no triable issue of fact as to the existence of an express warranty because

Plaintiff failed to produce the express warranty. The argument is moot. Even if the Court were to consider the argument, the Court noted that the Complaint failed to designate what type of warranty claim is being made. Plaintiff only marked the box designating "Count Three-Breach of Warranty". (Compl. par. Prod. L-6.) Plaintiff's Complaint failed to mark the boxes next to the designations for implied warranty and express warranty. (Compl. par. Prod. L-6.a. and Prod. L-6.b.) To the extent that the warranty claim is being made as evidence by checking paragraph Prod. L-6, the Court can infer that Plaintiff alleged a warranty claim under both the express and implied warranties. Defendants' argument as to a failure to produce the express warranty does not resolve the entire COA as the argument only applies to the express warranty portion of the COA.

The parties both argued over a Strict Liability – Failure to Warn COA. However, Plaintiff's Complaint failed to mark the designated box related to failure to warn. (Compl. par. Prod. L-2, last sentence.)

Without marking the box related to a failure to warn claim, the argument/issue by both parties related to failure to warn is not considered because the pleading acts as the outer boundaries of the issues to be resolved. However, to the extent the parties submit that the action included a failure to warn claim, the Court finds that the above analysis that there is no triable issue of fact to show that a defect attributable to Defendant applies to the potential failure to warn claim.

Without a triable issue of fact as to a defect attributable to Defendant, there is also no triable issue of fact as to causation. When there is no evidence of a defect attributable to Defendant, there can be no triable issue of fact showing that the non-existent defect caused or was a substantial factor in causing Plaintiff's injury.

Discussion as to Best Buy

The case against defendant Best Buy is different. Here, after the fall, Plaintiff returned the treadmill to Best Buy. Therefore, it had possession of the treadmill and the ability to inspect it. It did not make the treadmill available during litigation.

The unavailability of the treadmill was due to defendant's failure to retain it. Therefore, the burden shifts to defendant to show that the stoppage of the treadmill was not due to the three COAs of a defect in the product (manufacturing or design defect), negligence in manufacturing/designing the product (negligent product liability), a failure to perform as stated/promised or a failure to meet the quality of the product (breach of express or implied warranty), and causation. (CACI nos. 1201 [strict liability – manufacturing defect], 1203 [strict liability – design defect], 1220 [negligence product liability], 1230 [express warranty], and 1231 [implied warranty of merchantability]).

Defendant Best Buy failed to meet its burden of proof. The burden did not shift to Plaintiff. Therefore, the MSJ and MSA as to defendant Best Buy are DENIED.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.